Fort Bend County District Court

Cause No. 2025-CV-0036

Maria Juarez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	9-15-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregiong denial, Defendant asserts the following affirmative defenses.

First, Defednant asserts proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. Plaintiff's own negligence, including failure to yield the right-of-way at the intersection and failure to keep a proper lookout, caused or contributed to the collision. Any recovery must be reduced by Plaintiff's percentage of responsibility, and Defendant requests that the trier of fact apportion responsibility among all responsible parties.

Second, Defendant asserts sole proximate cause. The collision and resulting injuries, if any, were caused solely by the acts or omissions of Plaintiff or of a third party over whom Defendant had no control, and not by any negligence of Defendant.

Third, Defendant asserts failure to mitigate damages. Plaintiff failed to exercise reasonable care to minimize his or her alleged damages, including by failing to follow recommended medical treatment, and any recovery must be reduced accordingly.